

Reserve And Auxiliary Air Forces Act Rules, 1953

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Reserve And Auxiliary Air Forces Act Rules, 1953

UNION OF INDIA

India

Reserve And Auxiliary Air Forces Act Rules, 1953

Rule RESERVE-AND-AUXILIARY-AIR-FORCES-ACT-RULES-1953 of 1953

Published on 25 April 1953

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Reserve And Auxiliary Air Forces Act Rules, 1953

Published vide Notification Gazette of India, Extra, Part 2, Section 4, p. 187.

1574.

S.R.O. 175, dated 25.4.1953.- In exercise of the powers conferred by section 34 of the Reserve and Auxiliary Air Forces Act, 1952 (

62 of 1952

), the Central Government hereby makes the following rules:-

Chapter I

Preliminary

1.

Short title and extent.-

These Rules may be called the Reserve and Auxiliary Air Forces Act Rules 1953.

2.

Definitions.-

In these Rules unless the context otherwise requires-

(a)

"Act" means the Reserve and Auxiliary Air Forces Act, 1952;

(b)

"form" means a form set out in Schedule I;

(c)

"State Government", in relation to a Union Territory, means the Administrator appointed in respect thereof, under article 239 of the Constitution;

(d)

"member" means an officer or airman of the regular Air Force Reserve, the Air Defence Reserve or the Auxiliary Air force, as the case may be;

(e)

"rank" unless otherwise expressly provided, means substantive rank;

(f)

"Section" means a Section of the Act.

Chapter II

Regular Air Force Reserve

3.

Transfer from Air Defence Reserve and Auxiliary Air Force to Regular Air Force Reserve.-

A member of the Air Defence Reserve or the Auxiliary Air Force may, by special order of the competent authority in Form I be appointed to the Regular Air force Reserve subject to the following conditions namely:-

(a)

that he has completed the period of training.

(b)

that he has passed the medical and selection tests provided that the competent authority may in any special case, for reasons to be recorded in writing, waive or relax any of the aforesaid conditions.

4.

Cessation of Service.-

Every member of the Regular Air Force Reserve shall cease to be a member of that Reserve on completion of the period of his service as laid down in section 7 of the Act or on attaining the age specified below, whichever is earlier:

Rank

General Duties Officers

Ground Duties Officers

Airmen

Squadron Leader and below

48

54

-

Group Captain

52

57

-

Group Captain

55

60

-

Air Commodore

57

60

-

Air Vice Marshal

60

-

-

Master Warrant Officer and Airmen

-

-

55

5.

Transfer between Classes.-

Officers and Airmen transferred or appointed to the Regular Air Force Reserve under sub-sections (1) and (2) of section 5 of the Act may be retransferred from one class to another mentioned in section 6 of the Act according to their physical fitness professional aptitude and suitability.

6.

Rank of airmen on Transfer to the Reserve.-

An airman transferred to the Regular Air Force Reserve under sub-section (1) of section 5 of the Act shall retain the same rank or classification as was held by him in the Air force immediately before such transfer.

Chapter III

Air Defence Reserve

7.

Ineligibility.-

The following persons shall not be eligible for appointment to the Air Defence Reserve:-

(a)

Persons in receipt of a pension in respect of a disability arising from service in the Regular Air Force unless for reasons to be recorded in writing the competent authority decides that notwithstanding such disability the person concerned is fit for such appointment;

(b)

Members of the Armed Forces whose services have been terminated for misconduct;

(c)

Persons who have been convicted of an offence involving moral turpitude;

(d)

Persons who have been dismissed from the service of the Central or a State Government for misconduct involving moral turpitude.

[Form of application.-

[Substituted by S.R.O. 6-E, dated 18.12.1954, Pt. II, Section 4, Extraordinary,p. 13]

(a) Every person possessing any of the qualifications mentioned in sub-section (1) of Section 11 shall furnish to the competent authority through his employer, if any, the particulars of any such qualifications in Form II within such period as may be specified in a notification in the Official Gazette issued in this behalf by the Central Government.

(b)

Every person required by an order in writing issued by the competent authority under sub-section (2) of sec. 11 to furnish particulars shall do so in Form II within such time as may be specified in the order.

8.

-A. Registration of persons considered fit for enrolment.-

(a)

The name and address of the applicant together with other particulars furnished by him under rule 8 or in pursuance of any direction by the competent authority shall be entered in a register maintained in the form provided in sub-rule (b).

(b)

The register referred to in sub-rule (a) shall be called the "Air Defence Reserve Register" and shall be maintained in Form VI, and be kept in the custody of the competent authority or any other authority empowered by it in this behalf.]

[8-B. Obligation to register.-

The following persons who are or were employed at any time in connection with any aerodrome or in connection with the control and movement of aircraft, in any of the capacities specified below shall be liable to register their names under clause (h) of subsection (1) of section 11 :-

(i)

All technicians who are working or have worked on aircraft or its associated equipment for a period of not less than two years.

(ii)

All technicians who are working or have worked on aircraft or airborne armament for a period of not less than two years.

(iii)

All persons who are engaged or have been at any time engaged in air traffic control and other allied services for the control and safety of aircraft in the air and on ground.

(iv)

All persons who are employed or have been at any time employed for providing Meteorological services for the planning and execution of aircraft operations or for ensuring the safety of aircraft in the air and on ground.

(v)

All persons who are engaged or have been at any time engaged in the provisioning, custody and distribution, including transportation of aviation stores.]

9.

Verification of particulars.-

Where any person has furnished particulars of his qualification under rule 8, the competent authority or such other person as may be authorised by him in this behalf, shall verify the correctness of those particulars. The said authority or the person authorised by him may make such further enquiries as may be necessary regarding the suitability of the applicant for service in the Air Defence Reserve.

10.

Selection Tests.-

Where the particulars furnished under rule 8 in respect of any person have been found to be correct and he is otherwise deemed to be suitable for appointment in the Air Defence Reserve, the competent authority may require such person to undergo such medical and other tests (including flying tests at the risk of such person) as the competent authority may deem fit.

11.

Transfer between Classes.-

Officers and airmen appointed to the Air Defence Reserve may be transferred from one class to another mentioned in Section 10 of the Act according to the physical fitness, professional aptitude and suitability.

12.

Rank of officers.-

A person selected as an officer in the Air Defence Reserve shall be appointed in the rank of a Pilot officer:

Provided that-

(a)

a person who in the opinion of the competent authority, possesses special qualifications and experience, which would entitle him to the grant of a higher rank may be granted such higher rank;

(b)

a person, who was an officer in the Armed Forces may be appointed to the same substantive rank which he held during his service in the Armed Forces, unless a higher rank is granted to him under clause (a).

13.

Attestation.-

Every person shall be attested by his Commanding Officer at the time of [enrolment]

[Substituted by S.R.O. 6-E, dated 18.12.1954, Pt. II, Section 4, Extraordinary, p. 13]

. Attestation shall be an oath of affirmation specified in Form V.

14.

Rank of Airmen.-

A person selected as an airman in the Auxiliary Air Force shall be entered as Aircraftsman, 2nd class unless by virtue of his merit, qualifications and experience he is considered suitable by the competent authority for the grant of a higher rank.

Chapter IV

Auxiliary Air Force

15.

Composition.-

The Central Government may by notification in the Official Gazette notify the location area and other particulars of any Squadron of the Auxiliary Air Force.

16.

Formation of Squadrons and Units of Auxiliary Air Force.-

A Squadron or Unit of the Auxiliary Air Force may be formed either alone or jointly with any other part of the Regular Air Force.

17.

Permanent Staff.-

The permanent staff for the squadron and units of the Auxiliary Air Force and the Regular Air Force and the Regular Air Force Reserve and the Auxiliary Air Force. The tenure or appointment of the members of the Auxiliary Air Force will be 3 years as extendable upto 5 years except when otherwise ordered by Air HQ.

18.

Ineligibility.-

The following persons shall not be eligible for appointment of enrolment in the Auxiliary Air Force namely:-

(a)

(i)

Persons in receipt of a pension in r/o a disability arising from service in the Regular Air Force unless for reasons to be recorded in writing the competent authority decides that notwithstanding such disability the person concerned is fit for such appointment.

(ii)

Members of the Armed Forces whose services have been terminated for misconduct.

(b)

Persons who have been convicted of an offence involving moral turpitude.

(c)

Persons who have been dismissed from the service of the Central or a state Government for misconduct involving moral turpitude.

19.

Age Limits.-

A person shall not be qualified to be member of the Auxiliary Air Force unless he satisfied the following age limits:-

Minimum

Maximum

(a) General Duties Officers

18

28

(b) Ground Duties Officers

18

45

(c) Airmen

18

45

Provided that the competent authority may, in any special case and having due regard to the qualifications and experience of any person, relax the above age limits in his case.

20.

Applications for Commission.-

A person desirous of being appointed to a commission shall apply in Form III to any of the officers mentioned in rule 23.

21.

Selection and Medical Boards.-

Candidates for appointment to the Auxiliary Air Force in the commissioned ranks shall not be appointed unless found physically fit for the appropriate class applied for. They may be required to appear before any selection or Medical Board be laid down from time to time.

22.

Rank of officers.-

A person selected as an officer in the Auxiliary Air Force shall be appointed in the rank of a Pilot officer:

Provided that-

(a)

a person who in the opinion of the competent authority, possesses special qualifications and experience which would entitle him to the grant of a higher rank may be granted such higher rank;

(b)

a person who was an officer in the Armed Forces may be appointed to the same substantive rank which he held during his service in the Armed Forces, unless a higher rank is granted to him under clause (a).

23.

Application for Enrolment.-

A person desirous of being enrolled in the Auxiliary Air Force shall apply to the Officer Commanding. Squadron or Unit in which he desires to serve, or to an Officer who is a Recruiting Officer for the purpose of enrolment of persons under the Air Force Act, 1950 or to such other officer as may be appointed by the Central government in this behalf.

24.

Verification of Particulars.-

All applications, shall be duly scrutinised by the officer referred to in rule 23 and he may make such further enquires as he finds necessary regarding the suitability of the applicant for service in the Auxiliary Air Force as officer or airman.

25.

Medical and other Tests.-

(a)

when the officer referred to in rule 23 is satisfied that the application is in order and that the applicant fulfils all the conditions of service in the Auxiliary Air Force and is suitable for enrolment in the Squadron or Unit in which he desires to be enrolled and that a vacancy exists in that Squadron or Unit, he shall notify the applicant requiring him to present himself for medical and other tests at a time and place to be specified in the notice. the applicant shall normally be directed to report himself at a place nearest to his place of residence or business.

(b)

A candidate for enrolment in the Auxiliary Air Force shall be physically fit for the appropriate class for which he applied.

26.

Rejection.-

If the officer referred to in rule 23 is satisfied after verification that the application is not in order or that the applicant is medically unfit or that he is not otherwise suitable for the Auxiliary Air Force, he shall reject the application and inform the applicant accordingly.

27.

Enrolment.-

(a)

if the application is accepted for enrolment the applicant shall sign a declaration in part II of Form IV.

(b)

If the officer referred to in rule 23 is satisfied that the applicant understands the questions put to him and that he consents to the conditions of service shall sign a certificate to that effect in Part III of Form IV and the applicant shall thereupon be deemed to have been enrolled from the date so specified.

28.

Mustering to a group/Trade in a Squadron or Unit.-

Every enrolled person shall without undue delay be mustered to a Trade in a Squadron or Unit of the Auxiliary Air Force

and on receipt of an order so appointing him, he shall report himself for the purpose of joining such a Squadron or Unit at such time and place as may be specified in the order.

29.

Attestation.-

Every person enrolled shall be attested by his Commanding Officer. Attestation shall be on oath of affirmation specified in Form V.

30.

Rank of Airmen.-

A person selected as an airman in the Auxiliary Air Force shall be entered as Aircraftsman, 2nd class unless by virtue of his merit qualifications and experience is considered suitable by the competent authority for the grant of a higher rank.

31.

Termination of Services.-

The service of any member of the Auxiliary Air Force may at any time before the completion of his period of services, be terminated by the Central Govt, provided that, in case of an airman such service may also be terminated by such authority as the Central Govt may from time to time specify.

32.

Transfer between Classes.-

Officers and airmen appointed to the Auxiliary Air Force may be transferred from one class to another mentioned in Section 19 of the Act according to the physical fitness, professional aptitude and suitability.

33.

Retirement.-

A member of the Auxiliary Air Force shall cease to serve therein after he attains such age as the Central Govt may from time to time specify.

34.

Postings and Attachment.-

Subject to the provisions of Section 25 of the Act-

(a)

no member of the Auxiliary Air Force may be posted or attached without his consent to any Squadron or Unit other than that to which he was posted on appointment or enrolment.

(b)

no member of the Auxiliary Air Force may be posted or attached without the consent to any Squadron or Unit of the Regular Air Force.

Provided that when any such member belonging to a Squadron or Unit ceases to reside in the area where such Squadron or Unit is located he may be posted by the competent authority or such other authority as the competent authority may appoint in this behalf to a Squadron or Unit located in the area in which such member for the time being resides.

35.

A member of the Auxiliary Air Force who desires to be posted to another squadron or unit may submit his application to that effect in writing to his Commanding Officer and he shall state in such application the reasons for desiring the posting to the Squadron or Unit to which he desires to be posted or attached. The Commanding Officer shall forward the application to the competent authority for such action as it may think fit.

Chapter IV

A

Advisory Committees

35.

-A. Constitution and procedure of Advisory Committee.-

(1)

The Central Government shall, by notification in the official Gazette, constitute the following advisory committees, namely:-

(a)

a Central Advisory Committee for the whole of India.

(b)

a State Advisory Committee for each state and

(c)

a Unit Advisory Committee for every unit of the Auxiliary Air Force.

(2)

The Central Advisory Committee shall consist of twenty three members to be appointed by the Central Government of whom one shall be the Minister of Defence who shall be the Chairman and another shall be an officer of the Air Force who shall be the Secretary of the Committee.

Provided that the Chief of the Air Staff shall always be a member of the committee.

(3)

The State Advisory Committee for every State shall consist of nine members and for every union territory shall consist of five members' to be appointed by the Central Govt of whom one shall be an officer of the Air Force who shall be Secretary of the Committee, and the Central Govt shall nominate any one of the other members to be the Chairman of the Committee.

Provided that in the state advisory committee for any State or Union territory having a council of ministers' a minister of that state shall be appointed a member thereof and where so appointed he shall be the Chairman of that committee.

(4)

Every Unit Advisory Committee shall consist of the following members namely:-

(a)

the collector of the district in which the Unit is constituted, who shall be the Chairman.

(b)

one person representing the local authority or authorities established for the district in r/o which the Unit is constituted to be appointed by the State Govt.

(c)

three non-official members to be appointed by the State Govt of whom one shall be a member of the Legislature of the State.

(d)

the secretary of the District Soldiers, Sailors and Airmen's Board and

(e)

the Officers Commanding the auxiliary air force concerned who shall be the Secretary.

(5)

Every Advisory Committee shall have power to associate with itself in such manner and for such purpose as may be approved by the Chairman of the Committee any person whose association or advice it may desire in carrying out any of the provisions of the act and these rules, and any person so associated with it for any purpose shall have a right to take part in the discussions of the Committee relevant to that purpose, but shall not have a right to vote at a meeting of the committee.

(6)

Every Advisory Committee may appoint one or more sub-committees consisting of such number of persons as it thinks fit for the purpose of assisting the Advisory Committee in the efficient discharge of the functions, and it may delegate with or without any conditions or restrictions, as it may think fit, any of its powers and duties to any subcommittee so appointed.

(7)

Every Advisory Committee may, by general or special order in writing, delegate to its Chairman or any of its officers, subject to such conditions and limitations as may be specified in the order such of its powers and duties conferred and imposed on it by or under the Act and these Rules as it may deem necessary for the efficient performance of its functions.

(8)

Subject to the provisions of these rules, every Advisory Committee may regulate its proceedings in such manner as it thinks fit.

(9)

All questions at a meeting of an Advisory Committee or Sub-Committees thereof shall be decided by a majority of votes

of the members present, and in the case of equality of votes, the chairman, or in his absence, any other person presiding, shall have a second or casting vote.

(10)

The quorum of the Central Advisory Committee or a Sub-Committee thereof, shall be as nearly as may be one-fourth of the total strength of the committee or Sub Committee as the case may be, but subject thereto each of the Committees or sub-committees may act notwithstanding any vacancy in its number.

(11)

A minute of the proceedings of each of the Advisory Committee or of Sub Committees thereof shall be maintained.

(12)

A member of any Advisory Committee may resign his office by giving notice in writing to the Central Government through the Advisory Committee or which he is such member but the resignation shall not take effect unless and until it is accepted by the Central Govt and notified in the Official Gazette.

(13)

If a vacancy is caused by the reason of death, resignation, or otherwise in the Office of any member of an Advisory Committee, the vacancy so caused shall be filled by nomination of a person by the Central Govt and any person so nominated to fill such vacancy shall hold office so long only as the member in whose place he is nominated would have held office, but the member shall be eligible for re-nomination.

35.

-B. Powers and duties of Advisory Committees.-

(1)

It shall be the duty of the Central Advisory Committee to aid and advise the Central Government, in addition to the matters mentioned in the sub-section (2) of section 24, on all questions or matters of policy relating to the recruitment, training discipline, development and expansion of the Auxiliary Air Force and the co-ordination of its functions with those of the State Advisory Committees and on all such other matters connected with the Auxiliary Air Force as may be referred to it by the Central Government.

(2)

The functions of the State Advisory Committee shall be-

(i)

to encourage the recruitment of suitable persons in the Auxiliary Air Force;

(ii)

to study any local problem regarding recruitment, training, discipline, development and expansion of the squadrons or units of the Auxiliary Air Force in the State and to report the result of such study to the Central Government and Central Advisory Committee.

(iii)

to co-ordinate the activities of the various units of the Advisory Committees constituted in a state; and

(iv)

to advise on any other matter which may be referred to it by the Central Government or by the Central Advisory Committee as the case may be.

(3)

A Unit Advisory Committee, shall aid and advise the Commanding Officer of the squadron or unit of the Auxiliary Air Force for which it is constituted on one or more of the following matters namely:-

(i)

any local problem which may arise in regard to recruitment, training, discipline and promotion of squadrons or units of the Auxiliary Air Force;

(ii)

general welfare of members of the squadrons or units of the Auxiliary Air Force;

(iii)

any other matter which may be referred to it by the Central or State Advisory Committee or the competent authority.

Chapter IV

B

Reinstatement In Civil Employ Of Persons Registered Under The Act After Discharge

[35-C. Reinstatement in civil employ of persons required to perform service under the Act.-

[Substituted by S.R.O. 224, dated 11.6.1955, Pt. II, Section 4, p. 150]

For the purposes of the proviso to sub-section (1) of sec. 27 and sub-section (3) of sec. 29, the District Judge within the local limits of whose ordinary original civil jurisdiction the employer resides or, in president towns where there is no Court of the District Judge, the Chief Judge of the Small Cause Court within the local limits of whose jurisdiction such employer resides, shall be the prescribed authority.]

35.

-D. Nature of the inquiry by the prescribed Authority.-

where a reference is made by any party under the proviso to sub-section (i) of section 27 to the authority specified in rule 35C, a copy of such reference shall be served upon the opposite party and the said authority shall pass any of the orders specified in the aforesaid of proviso after giving both parties a reasonable opportunity of being heard and after making such further inquiries, if any, as it thinks fit.

35.

-E. Prescribed rights under Section 28.

When any person is called up for service under section 25, such person may-

(a)

at his option, continue to subscribe to any provident or superannuation fund or other scheme for the benefit of employees maintained or managed by the employer in connection with the employment he relinquished immediately before he was called up at a rate applicable to him under the rules regulating the administration of such fund or scheme, as a case may be, and the said employer shall continue to paid it such person's account in the fund or scheme with interest on the amount in such account in accordance with the rules of the fund or scheme.

(b)

if the rules regulating the administration of such fund or scheme so permit, withdraw, subject always to the provisions of such rules, sums from the amount standing at his credit in the fund or scheme.

Explanation.- For the purposes of calculating the amount of any contribution or withdrawal admissible, the pay of such person shall be deemed to be the pay which he would have received had he not been called up.

35.

-F. Recovery of the difference of pay and allowances.-

Where an application is made by any member under the provision of sub-section (3) of section 29 to the authority specified in rule 35C, the said authority after giving both parties a reasonable opportunity of being heard and after making such further inquiry, if any, in the matter as it thinks fit may, if it is satisfied that the employer has refused or failed to pay the difference in pay and allowances as provided in sub-section (2) of the said section, determine the amount to which such member is entitled and the amount so determined shall be realized from the employer as if it were a money decree passed by a competent civil court against the employer.

Chapter V

Miscellaneous

36.

Precedence.-

Members of any Air Force Reserve and Auxiliary Air Force will take precedence among themselves according to the dates of appointment in their respective ranks in any Air Force Reserve or the Auxiliary Air Force as the case may be:-

Provided that in determining the precedence inter se of any such members who before their appointment were officers in the Air Force, their seniority in the relevant rank in the Air Force shall be taken into consideration.

37.

Resignation of Officers.-

(a)

An Officer may at any time be called upon to resign his commission in any Air Force Reserve or the Auxiliary Air Force if in the opinion of the Central Government he is guilty of any misconduct or is otherwise unsuitable for retention in service. If such officer fails to submit a formal application to resign, his commission, his commission will be terminated compulsorily.

(b)

Any officer may apply for permission to resign his commission. Such application shall be supported by a full statement of

the circumstances relevant to the case.

38.

Discharge of Airmen.

(a)

Any airman may by order of the competent authority be discharged at any time on any of the following grounds.

(i)

medical unfitness,

(ii)

unsatisfactory conduct,

(iii)

inefficiency,

(iv)

if his services are no longer required.

(b)

The competent authority may on application of an airman in any Air Force Reserve or the Auxiliary Air Force discharge such airman. Such application shall be supported by a full statement of the circumstances relevant to the case.

39.

Dismissal and Removal.-

The Central Govt may dismiss or remove from service any officer or airman of any Air Force Reserve or the Auxiliary Air Force before the completion of his period of service should the circumstances in its opinion justify such dismissal or removal.

40.

Discharge Certificate.-

Any airman who is removed or discharged from any Air Force Reserve or the Auxiliary Air Force shall be furnished with a certificate setting forth:-

(a)

the authority terminating his services;

(b)

the cause for such termination;

(c)

the full period of his service in the Air Force Reserve or Auxiliary Air Force; and

(d)

his character and trade proficiency.

41.

Liability to be summoned for Court Martial Court of Inquiry etc.-

Members of any Air Force Reserve or the Auxiliary Air Force shall be liable to be summoned to attend as members of or witnesses at a Court Martial Court of Inquiry or a similar body constituted by the Indian Air Force, provided that, no such member shall be liable to be summoned as a member of a Court Martial unless he is subject to the Air Force Act

45 of 1950

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42.

Service with Foreign State.-

A member of any Air Force Reserve or the Auxiliary Air Force shall not during the period of his service in such Reserve or Force or at any time thereafter serve without the written permission of the Central Govt in any foreign state.

43.

Change of Address.-

A member of any Air Force Reserve or the Auxiliary Air Force shall inform the competent authority or such other authority as may be specified by him of any change in his address within 15 days of such change.

44.

Change of next-of-kin.-

A member of any Air Force Reserve or the Auxiliary Air Force shall report any change which takes place in the name,

address or relationship of his next-of-kin. If the person to whom a member wishes notification of any causality which may occur to him to be sent is not his next-of-kin, he should report any change in that person's name and address also.

45.

Inventions.-

Members of any Air Force Reserve or the Auxiliary Air Force who invent any new pattern of Army Navy or Air Force equipment or any modification thereof shall before applying for patents in respect thereof shall report such invention or modification to the competent authority or such other authority as may be specified by him from time to time.

46.

Visits abroad.-

A member of any Air Force Reserve or the Auxiliary Air Force proceeding to a foreign country shall travel as a private individual. He shall notify to the competent authority at least four weeks before he leaves India, his intended date of departure, period of absence and his address abroad.

47.

Disclosure of Official information.-

A member of any Air Force Reserve or the Auxiliary Air Force shall not publish in any form or communicate either directly or indirectly to the Press any service information or his views on any subject or publish book or articles whether purporting to be fact or fiction which, in any way, deals with any subject with the Armed Forces without the previous permission, in writing from the competent authority.

Explanation- Any statement made by any such member to any relative or a friend which may subsequently be published in any newspaper or otherwise which contains any communication of the nature referred to above shall for the purpose of this rule be deemed to have been made by the member himself.

48.

Association with subversive organisations .-

A member of any Air Force Reserve or the Auxiliary Air Force shall not take part in, or associate himself in any manner with, any subversive organisation.

49.

Political activities.-

When called up for service under Section 25 of the Act, a member of any Air Force Reserve or the Auxiliary Air Force shall not:-

(a)

take any active part in the affairs of any political organization or party either by acting for or as a member of the candidates election committee, or by speaking in public or publishing or distributing literature in furtherance of the political purposes of such organization or party or in any other manner.

(b)

issue an address to any electorate or any other manner publicity announce himself or allow himself to be announced as a candidate or a prospective candidate for election from any constituency to Parliament or other legislature in India.

50.

Witness in private law suits.-

A member of any Air Force Reserve or the Auxiliary Air Force when served with a notice to give evidence in any private law suit shall, if matters connected with Service duties are involved, at once inform the competent authority or having received such notice. The competent authority shall immediately issue instructions to the member concerned whether any privilege should be claimed in respect of such evidence under section 123 and 124 of the Indian Evidence Act, 1872, and the member shall act in accordance with such instructions.

51.

[Training.-

[Substituted by S.R.O. 6-E, dated 18.12.1954, Pt. II, Section 4, Extraordinary, p.13]

(1)

Every member of Air Defence Reserve shall undergo training for a period of 4 weeks every year at such times and places in India as may from time to time be determined by the competent authority or any other authority specified by it in this behalf. Such member is liable to carry out the following minimum training every year, that is to say-

(i)

Officers (Aircrew)- 20 hours flying and 80 hours of ground training;

(ii)

Officers (Ground Branches)- 80 hours ground training;

(iii)

Airmen (Aircrew)- 20 hours flying and 80 hours of ground training

(iv)

Airmen (Ground Trades)- 80 hours of ground instructions.

Provided, however, that the competent authority may exempt any member wholly or partly from such training or may extend the period of such training.

(2)

Every, member of the Auxiliary Air Force shall undergo such training as may be laid down by the competent authority from time to time and such training shall be carried out at such times and places as may be determined by the competent authority or any other authority specified by it in this behalf.

(3)

Where training is not held continuously, one day shall consist of 4 hours of actual training and in cases where training of less than 4 hours is completed during any one day, one day may be made of fractions of a day not more than four in number.]

52.

Call-up.-

(1)

Call-up order shall be signed by the competent authority or such other authority as may be specified by him.

(2)

The call up order shall be served on members of any Air Force Reserve or the Auxiliary Air Force in the following manner:-

(a)

by effecting personal service; or

(b)

by issue of the order through registered post; or

(c)

by service on any adult male member of the family, or

(d)

if the order cannot be served in any of the above modes affixing a copy of the order at his last known place of residence.

53.

Wrongful disposal of service property.-

Any member of the Air Force Reserve or the Auxiliary Air Force making away with, selling, pawning, wrongfully or negligently destroying, damaging or losing anything issued to him as a member of such Reserve or Auxiliary Air Force or willfully refusing or neglecting to deliver it on demand anything issued to him as a member of such Reserve or Auxiliary Force, shall be liable to make good the value thereof.

54.

Penalty.-

A member of any Air Force Reserve or the Auxiliary Air Force failing to comply with the provisions of any of these rules without reasonable excuse shall be liable to be punished with fine which may extend to Rupees Fifty.

55.

Conditions governing the grant of exemption from any obligation or liability under the Act.-

(1)

A person (hereinafter referred to as the applicant) subject to any obligation or liability under the Act may apply to competent authority nearest to the applicant's usual place of residence or business for exemption from any obligations or liability under the Act or any provision thereof on the ground that exceptional hardship would be caused to him if he were called up for service under the Act and such application shall be forwarded to the Central Govt by the competent authority with its recommendations.

(2)

The Central Govt may, if satisfied that the applicant would undergo exceptional hardship if called up for service under the Act, grant exemption from only obligation or liability under the Act or any provision thereof to the applicant either absolutely or subject to such conditions, restrictions or reservations as the Central Govt may deem fit to impose; Provided that the Central Govt may at any time cancel the exemption or modify the conditions, restrictions or reservations, if any subject to which the exemption was granted.

(3)

The exemption granted under this rule shall be effective only from such date as may be specified in the order granting the exemption and if no date is specified, from the date of the order.

I

FORM I

Special Order of appointment to the Regular Air Force Reserve under sub-section 2 of section 5 of Reserve & Auxiliary Air Force Act.

I am directed to inform you that the Govt of India have considered you fit for service with the Regular Air Force Reserve and are pleased to appoint you hereby to the Regular Air Force Reserve with effect from.....

2. You will cease to be a member of the Air Defence Reserve/Auxiliary Air Force wef the date above mentioned.

3. On being appointed to the Regular Air Force Reserve you will cease your rights and obligations to the Air Defence Reserve/Auxiliary Air Force and will be governed by the terms, conditions, liabilities and privileges of the Regular Air Force Reserve as laid down in the Reserve and the Auxiliary Air Forces Act and Rules and many other regulations and orders made from time to time.

Date.....

Place.....

Signature of the Competent Authority

To

.....

.....

FORM II

Application Form

(Candidates are to fill section 'A' and 'C')

SECTION 'A'

1. Name in Full (Block Capitals) In the order in which you wish your name to be shown for official purpose, Underline the SURNAME

2. Permanent Home Address.

3. Postal Address (in full). Any change of address should be communicated at once to Air Headquarters, New Delhi.

4. I hereby apply for a Commission/enrolment in the Air Defence Reserve.

Place.....

Date.....

Applicant's Signature.

SECTION 'B'

(Endorsement to be signed by the employer under whom the individual is employed)

I concur in this application of and I agree to his admission in the Air Defence Reserve.

Place

Date

Signature.....

Designation.....

Section 'C'

1. Date of Birth.....

2. Place of Birth.....

3. Religion.....

4. (a) State.....

(b)

District or Division.....

5. Married or single, if married state maiden name of wife, place and date of marriage.
6. If married, the number of children their dates of birth and sex.
7. Name, address and occupation of next-of-kin showing relationship (if married individual's next-of-kin is his wife)
8. Are you a citizen of India?
9. If so whether by birth or descent or registration or naturalization or otherwise?
10. (a) Name of father (in full and in BLOCK LETTERS).
- (b)
- What is or was his permanent address? What is his present address, if alive?
- (c)
- His country of birth
- (d)
- Nationality
- (e)
- What is or was your father's occupation?
- (f)
- Did your father ever change his nationality?
11. (a) Mother's country of birth
- (b)
- Nationality
12. Has your father or any near relative served in the armed forces of the Indian Union, If so, give brief particulars and attach copies of any documents in support of your statement.
13. Give particulars of all examinations you have passed and the class, division or other distinction obtained.
- Examination or Degree
- Result and Division with Distinction.
- School/College where educated
- Dates from to
- University
- Subject taken
14. Professional and/or Technical qualification (i.e. state if in possession of any Ground Engineers Licences or a member of any Chartered Institutions or Associations).
- (a) For pilots only:-
- Hours flown
- (i) Type of Air -craft flown
- Solo Day
- Solo Night
- Dual Day
- Dual Night
- Total
- GRAND TOTAL
- (ii) Any other particulars
- (b) (i) For other Air crew:-
- Hours flown
- Day
- Night
- Total
- Navigator
- Flt Gunner
- Flt Engineer
- Flt Signaller
- |||||
- (ii)

Any other particulars:-

15. State any language qualifications (oriental and European) and give degree of proficiency in each.

16. (a) Are you in possession of any civilian flying licence? If so, attach any documentary evidence in support of your statements.

(b)

State any other relevant information concerning flying experience, if any.

17. (a) What games do you play or have played?

(b)

Name any position of authority (e.g., school monitor) or distinction in games or athletics you have achieved, mentioning dates.

18. EMPLOYMENT. Give full particulars of your present employment and all employments you have carried out. This should include service in a Government Department with ranks held and relative dates.

N.B.- Individual must state to whom he was directly responsible.

Name of employer

Date of joining

Date of leaving

Reason for leaving

Nature of employment

Salary per month

Place and address of employer

19. Have you ever served in any of the Armed Forces in India, the Reserve of any of the three Services, the Auxiliary Air Force, the Territorial Army or any of the forces of a foreign country. If so, state Service, Units, etc.

(a)

For what period (give dates)

(b)

Number, Rank held on leaving

(c)

Cause of leaving.

20. (a) Have you ever been arrested, prosecuted, convicted, bound over, interned, externed, or otherwise dealt with under any Criminal Law in force?

(b)

Are you/have you ever been, a member of a party or organisation of a political, cultural nature? If so, state the name of the party or organisation with the period/periods of your membership thereof

(c)

Have you ever been dismissed from any of the Armed Forces in India, the Reserve of any of the three services the Territorial Army, Auxiliary Air Force, National Cadet Corps, Government or Civil employment?

21. "I do hereby declare that I have never at any time deserted or been dismissed or discharged from any combatant or non-combatant capacity in the Armed Forces of any State or Country, and that I have never been sentenced to imprisonment by any Court of Law."

Signature.....

Note:- It is emphasized that legal action will be taken against an individual who is discovered to have made any false declaration(s) which can be verified from existing records.

22. I do hereby declare that to the best of my knowledge and belief the above information is correct.

FORM III

Application Form

(Candidates are to fill Sections `A' and `C')

For.....Commission in the Auxiliary Air Force

SECTION `A'

1. Name in Full (Block Capitals) in the order in which you wish your name to be shown for official purposes. Underline the SURNAME.

2. Permanent Home Address.

3. Postal Address (in full). Any change of address should be communicated at once to Air Headquarters. New Delhi.

4. I hereby apply for a Commission in the Auxiliary Air Force.

Place

Date

SECTION `B'

(Certificate to be signed by the employer under whom the applicant is employed) I concur in this application of
and I agree to his admission in the Auxiliary Air Force.

Place.....

Date.....

SECTION `C'

1. Date of Birth

2. Place of Birth

3. Religion

4. (a) State

(b)

District of Division

5. Married or Single; if married state maiden name of wife, place and date of marriage.

6. If married, the number of children, their dates of birth and sex.

7. Name, address and occupation of next-of-kin showing relationship. (If married, an applicant's next-of-kin is his wife).

8. Are you a national of the Indian Union by birth and/or by domicile?

9. If you are employed by the Central or State Government, have you been given permission to submit this application?
Attach relevant authority.

10. If you are vegetarian, have you any objection to messing with non-vegetarians, or eating food prepared in a non-vegetarian cookhouse?

11. (a) Name of father (in full and in BLOCK LETTERS).

(b)

What is or was his permanent address? What is his present address, if alive?

(c)

His country of Birth

(d)

Nationality

(e)

What is or was your father's occupation?

(f)

Did your father ever change his nationality?

12. (a) Mother's country of Birth

(b)

Nationality

13. Has your father or any near relative served in the Armed Forces of the Indian Union? If so, give brief particulars and attach copies of any documents in support of your statements.

14. Give particulars of all examinations you have passed and the class, division or other distinction obtained.

Examination or Degree

Result and Division with Distinction.

School/College where educated

Dates from to

University

Subject taken

15. State any language qualifications (Oriental and European) and give degree of proficiency in each.

16. (a) Are you in possession of any civilian flying licence? If so, attach any documentary evidence in support of your statements.

(b)

State any other relevant information concerning flying experience, if any.

17. (a) What games do you play or have played?

(b)

Name any position of authority (e.g. School monitor) or distinction in game or athletics you have achieved, mentioning dates.

18. Employment. Give full particulars of your present employment and all employments you have carried out. This should include service in a Government Department with rank held and relative dates.

N.B.- Applicant must state to whom he was directly responsible and for what personnel, if any.

Name of employer

Date of joining

Date of leaving

Reason of leaving

Nature of employment

Salary per month

Place and address of employer

19. Have you served in the Navy, Army or Air Force, Indian Territorial Army, N.C.C. or Auxiliary Air Force?

If so, state formation, unit etc.

(a)

For what period (Give dates)

(b)

Number, Rank held on leaving

20. (a) Have you ever been arrested, prosecuted, convicted, bound over, interned, externed or otherwise dealt with under the Criminal Law Amendment Act or under any Criminal Law in force?

(b)

Are you/have you ever been a member of a party or organisation of a political, communal nature? If so, state the name of the party or organisation with the period/periods of your membership thereof?

(c)

Have you been dismissed from the Territorial Army, Auxiliary Air Force, N.C.C., Indian Fleet Reserve, or Civil Employment?

21. "I do hereby declare that I have never at any time deserted or been dismissed or discharged from any combatant or non-combatant capacity in the Armed Forces of any State or Country and that I have never been sentenced to imprisonment by any Court of Law".

Signature.....

22. NOTE- It is emphasized that legal and disciplinary action will be taken against an applicant who is discovered to have made any false declarations(s) which can be verified from existing records. The extent of the disciplinary action will be that the candidate's application will be rejected and that if he is undergoing training such training will be cancelled. The extent of legal action is laid down in Section 182 of the Indian Penal Code.

Certificate "C"

23. I do hereby declare that to the best of my knowledge and belief the above information is correct.

And if I am granted a commission, I further declare that I will serve the constitutionally established Government of India for so long as my services may be required or until my resignation is accepted and that I am prepared to serve in any Branch or Department of the service to which I may be appointed or subsequently transferred and in any part of the world.

.....

(Signature of witness)

(A.F.R.O. or other Gazetted or Commissioned Officer)

Place

Date

.....

(Signature of applicant)

FORM IV

Auxiliary Air Force

Form of Enrolment

Enrolment of No. Name in theSqdn Unit.

Part I

Questions to be put before enrolment

1. What is your name?
 2. What is your father's name and address?
 3. Are you a citizen of India?
 4. What is your village, Thanna/Police Station, Taluk, Tehsil and Province/State?
 5. What is your Post Office?
 6. What is your Railway Station?
 7. What is your present trade?
 8. What is your religion, caste or tribe?
 9. Where are you employed?
 10. What are your educational qualifications?
 11. What is your age?
 12. Have you ever been convicted by a Criminal Court, and if so, in what circumstances, and what was the sentence?
 13. Do you now belong to the regular forces or the Reserve?
 14. Have you ever served in the regular forces or the Reserve? If so, state the period of service and the cause of discharge.
 15. Are you willing to be enrolled under the Reserve and Auxiliary Air Forces Act, 1952?
 16. In which unit do you desire to be enrolled?
 17. Are you willing to undergo Air Force Training and to perform Air Force Service as specified in the Act and to allow no caste usages to interfere with your Air Force Duty.
- NOTE.- Non-interference with caste usages will be observed exactly as in the case of the regular forces.
18. Are you willing to serve until discharged as provided in the Act?
 19. Have you ever previously applied for enrolment under the Act and if so, with what result?
 20. Have you been dismissed from the Territorial Army, Auxiliary Air Force or National Cadet Corps, Indian Fleet Reserve or Civil Employment?
 21. Are you willing to be vaccinated or revaccinated?
 22. Are you in receipt of any allowance from Government? If so, on what account?

Part II

Declaration on Acceptance for Enrolment

I solemnly declare that the answers I have given to the questions in this form are true and that no part of them is false, and that I am willing to fulfil the engagement made.

Signature or thumb impression.....

Part III

Certified that the applicant understands and agrees to the conditions of enrolment.

Signature of enrolling officer

Date of enrolment

FORM V

Form of Oath

I,..... Swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by laws established and that I will, as in duty bound honestly and faithfully serve in the Air Defence Reserve/Auxiliary Air Force of the Union of India and go wherever ordered by air land or sea and that I will obey all commands of the President of the Union of India and the commands of any officer set over me, even to the peril of my life.

Form of Affirmation

I,..... Solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established and that I will, as in duty bound, honestly and faithfully serve in the Air Defence Reserve/Auxiliary Air Force of the Union of India and go wherever ordered by air, land and sea and that I will obey all commands of the President of the Union of India and the commands of any officer set over me, even to the peril of my life.

Signature

Sworn/duly affirmed before me at.....this.....day of.....20.

I

FORM VI

Air Defence Reserve Register

Serial No.

Name in full

Permanent home address

Date of Birth

Married or single

Name and address of next-of-kin

Father's name and address

Educational qualifications

1

2

3

4

5

6

7

8

Professional and/or technical qualifications

Particulars of present employment

Result of medical examination

Result of Enquiry and Selection Board

Date of Commission/Enrolment

Date of Termination of Commission/engagement

Date of Transfer to the Regular Air Force Reserve

Remarks

9

10

11

12

13

14

15

16

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Translation